

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS**

JULIANNE MCDONALD,	)	
Plaintiff,	)	
	)	
vs.	)	Civil Action No. 22-cv-1235
	)	
MICHAEL J. SEIPEL and	)	
M & S TRUCKS, INC.,	)	
Defendants.	)	
_____	)	

COMPLAINT

COMES NOW plaintiff Julianne McDonald, and for her cause of action against defendants Michael J. Seipel and M & S Trucks, Inc., alleges and states as follows:

1. Plaintiff is a resident and citizen of the State of Oklahoma.
2. Defendant Michael J. Seipel is a resident and citizen of the State of Kansas.
3. Defendant M & S Trucks, Inc. is a corporation duly organized and existing under the laws of the State of Kansas.
4. Jurisdiction is conferred on this Court pursuant to 28 USC § 1332 in that it involves citizens of different states and a sum in controversy in excess of \$75,000.00 exclusive of interest and costs.
5. At all relevant times, on October 27, 2020 in Harper County, Kansas, Michael J. Seipel was acting within the scope of his actual and apparent authority for his employer, defendant M & S Trucks, Inc.
6. Michael J. Seipel negligently operated a motor vehicle thus causing a collision with a vehicle being operated by Plaintiff.
7. Said negligence caused Plaintiff to suffer damages and other injuries.
8. Defendant M & S Trucks, Inc. is vicariously liable for the negligence of its employee, Michael J. Seipel.

WHEREFORE plaintiff, Julianne McDonald prays for judgment against defendants, Michael J. Seipel and M & S Trucks, Inc., and each of them, as follows:

- a. For actual damages for a sum in excess of \$75,000.00;
- b. For the costs of this action; and
- c. For such other and further relief as the Court deems just and equitable.

/s/ Timothy J. King
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